

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
EDWARD ORTIZ,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, JUAN
PICHARDO, and JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 12, 2019



SIM & DEPAOLA, LLP

By: Samuel DePaola

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

PO JUAN PICHARDO, TAX REG NO. 932204
41st DETECTIVE SQUAD
1035 LONGWOOD AVE.
BRONX, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
EDWARD ORTIZ,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, individually and in their official
capacities as New York City police officers, JUAN
PICHARDO, and JOHN or JANE DOE 1-10,Defendants.
-----X

Plaintiff, EDWARD ORTIZ, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. These claims arise from an incident that occurred on April 21, 2018 at approximately 7:40 p.m., in which defendants, acting under color of state law, unlawfully arrested, detained, assaulted and battered Mr. Ortiz in the vicinity of Dawson street and Prospect Avenue, county of Bronx, state of New York. Mr. Ortiz was not charged with any crimes or violations of the law by defendants. As a result, Mr. Ortiz was deprived of his liberty and sustained physical and emotional injuries. Mr. Ortiz was in police custody at Lincoln Hospital for approximately two (2) days, until he was discharged, on or about, April 22, 2018.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff Edward Ortiz (“Mr. Ortiz”) resides at 1436 St. Lawrence Apartment #1, Bronx County, State of New York 10455.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. At all times herein relevant, defendant, Juan Pichardo, was employed by the City of New York and NYPD as a police officer or detective, under Shield No. 8498 and Tax Reg. No. 932204, assigned to the 41st NYPD Precinct or Detective Squad, located at 1035 Longwood Ave., Bronx, New York 10459. Defendant Pichardo is being sued in his individual and official capacities.
8. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff is unaware of the true names, identities or tax registration numbers of

- Defendants John or Jane Doe 1-10 but said information is within the knowledge and possession of defendants.
9. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York and/or the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.
 10. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
 11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
 12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
 13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
 14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On April 21, 2018, at approximately 7:30 p.m., Mr. Ortiz was walking on Dawson Street, in the County of Bronx, state of New York, when he was approached and grabbed from behind by defendants, including Pichardo and John Doe 1.

16. Defendant Pichardo and/or John Doe 1 proceeded to punched Mr. Ortiz in the windpipe and slam his face against a gate, causing plaintiff to suffer substantial pain and incur significant injuries.
17. Defendant Pichardo and/or John Doe 1 then twisted Mr. Ortiz's arm behind his back and struck him in the face three (3) times.
18. Defendant Pichardo and/or John Doe 1 then forcefully slammed Mr. Ortiz' body against the ground three (3) times.
19. Mr. Ortiz was placed in an ambulance by defendant Pichardo and/or John Doe 1 and taken to Lincoln Hospital.
20. Defendant Pichardo and/or John Doe 1 escorted Mr. Ortiz to the hospital in handcuffs, where he was treated for the serious and substantial injuries caused by defendants, including Pichardo and John Doe 1.
21. Mr. Ortiz was handcuffed in police custody from April 21, 2018 at approximately 7:30 p.m. until April 22, 2018 at approximately 10:00 p.m., when he was discharged from Lincoln Hospital in Bronx County, New York without being charged with any crimes or violations of the law.
22. Mr. Ortiz did not violate any law or local ordinance and was not charged with any crimes, whatsoever.
23. Defendants, including Pichardo and John Doe 2 were fully aware, at all times, that they lacked probable cause or reasonable suspicion to stop, detain or arrest Mr. Ortiz.
24. Defendants Pichardo and John Doe 1 were complicit in the assault and battery of Mr. Ortiz.

25. Mr. Ortiz was bruised and battered by Defendants, including Pichardo and John Doe 1, and remained in police custody while receiving medical attention within Lincoln Hospital.
26. At no point did the Defendants, including Pichardo and John Doe 1, ever observe Mr. Ortiz commit any crime or offense.
27. At no point were the Defendants, including Pichardo and John Doe 1, ever told by any witnesses that Mr. Ortiz committed any crime or violation of the law.
28. The Defendants, including Pichardo and John Doe 1, had no probable cause or reasonable suspicion to arrest, detain or assault and batter Mr. Ortiz.
29. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
30. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
31. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest Plaintiff.
32. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge and possession of defendants.

33. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Ortiz.
34. At all times relevant hereto, Defendants, including Pichardo and John Doe 1, acted maliciously and with intent to injure Plaintiff.
35. At all times relevant hereto, Defendants, including Pichardo and John Doe 1, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
36. As a direct and proximate result of the acts of defendants, including Pichardo and John Doe 1, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

37. The above paragraphs are here incorporated by reference as though fully set forth.
38. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
39. Plaintiff was conscious of his confinement.
40. Plaintiff did not consent to his confinement.

41. Plaintiff's arrest and false imprisonment was not otherwise privileged.
42. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
43. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
44. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.
46. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
47. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
48. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
50. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

- 51. The above paragraphs are here incorporated by reference as though fully set forth.
- 52. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
- 53. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
- 54. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 55. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
- 56. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

- 57. The above paragraphs are here incorporated by reference as though fully set forth.
- 58. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
- 59. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
- 60. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. Defendants initiated the prosecution against Plaintiff.
64. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
65. Defendants acted with malice.
66. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.
67. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
68. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
69. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth.
71. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.

72. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
73. Defendants acted with malice.
74. The prosecution was terminated in Plaintiff's favor when he was acquitted of all charges.
75. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
80. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
81. Defendants intended to inflict substantial harm upon Plaintiff.
82. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
83. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

85. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

86. The above paragraphs are here incorporated by reference as though fully set forth.
87. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
88. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
89. Defendants intended to inflict substantial harm upon Plaintiff.
90. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
91. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
93. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth.

95. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
96. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
98. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

99. The above paragraphs are here incorporated by reference as though fully set forth.
100. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
101. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

- 105. The above paragraphs are here incorporated by reference as though fully set forth.
- 106. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
- 107. Defendant City breached that duty of care.
- 108. Defendant City placed defendants in a position where they could inflict foreseeable harm.
- 109. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
- 110. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
- 111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

- 113. The above paragraphs are here incorporated by reference as though fully set forth.

114. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
115. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
116. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
117. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.
118. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action

Dated: Bayside, New York
June 12, 2019



SIM & DEPAOLA, LLP

By: Samuel C. DePaola

Attorneys for Plaintiff

4240 Bell Blvd., Suite 201

Bayside, NY 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 12, 2019


SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDWARD ORTIZ,

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CITY OF NEW YORK, individually and in their official capacities as New York City police officers, JUAN PICHARDO, and JOHN or JANE DOE 1-10,

Defendant.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorneys for Plaintiff(s)
42-40 Bell Boulevard, Ste. 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for